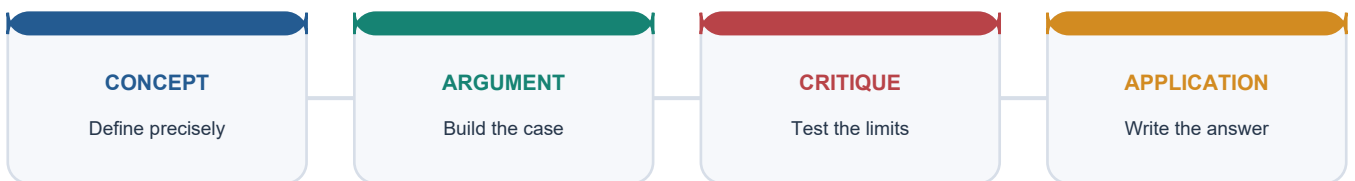


COMPLETE LEARNING SESSION

Anti-Defection Law - Complete Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / SESSION INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Polity 42 - Anti-Defection Law

Subject: Polity | **GS Paper:** GS-II | **Legal control date:** 8 September 2026

Source and legal-control ledger

- Canonical Basic owner: Polity/basic/Anti-Defection-Law.md.
- Optional Advanced owner: Polity/advanced/42_Anti-Defection-Law.md.
- Reconciled with the Constitution, 52nd and 91st Amendment texts, official-paper PYQ routing and proposition-controlled Supreme Court holdings.
- Current-status control: the Nabam Rebia reconsideration is not presented as decided; no volatile faction, officeholder or pending-case outcome is frozen.
- Fact/analysis rule: enacted text and holdings are stated as law; reforms and democratic evaluation are stated as analysis.

BASIC LEARNING SESSION

Learning roadmap

origin + Articles -> paragraphs 1-8 -> member types + whip
-> merger + presiding exemption -> Speaker procedure + judicial review
-> case chronology -> resignation + delay + office bars
-> institutional firewall -> democratic evaluation -> exam architecture

Constitutional timeline

Date	Development	Legal significance
1967	recurrent floor-crossing becomes a national concern	political background
1985	52nd Amendment	Tenth Schedule inserted; four Articles amended
1 Mar 1985	commencement	operative constitutional anti-defection framework
1992	Kihoto Hollohan	core upheld; paragraph 7 invalid; review survives
1 Jan 2004	91st-Amendment changes effective	split deleted; caps and office bars
2016-2023	Nabam Rebia to Subhash Desai	removal-notice, party-whip and institutional questions

ASCII MASTER FLOW DIAGRAM

PANEL 01/12 - CONSTITUTIONAL ORIGIN AND ARTICLE DECODER

```

+-----+
| 1967 instability -> Committee on Defections -> 52nd Amendment Act, 1985. |
| Tenth Schedule commenced 1 March 1985; it amended Arts 101, 102, 190 and 191. |
| Art 102(2): Parliament member disqualified if disqualified under Tenth Schedule. |
| Art 191(2): same constitutional bridge for a State House. |
| Arts 101(3)(a)/190(3)(a): such disqualification leads to seat vacancy. |
| Answer line: constitutional disqualification, not crime or lifetime political ban. |
+-----+

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v

PANEL 02/12 - PARAGRAPH 1 DEFINITIONS

```

+-----+
| House = either House of Parliament, Legislative Assembly, or either State House. |
| Legislature party = all members of that House belonging to the political party. |
| Original political party = party to which member belongs for para 2(1). |
| Political party is organisational/electoral; legislature party is House-specific. |
| Subhash Desai: legislative headcount alone cannot manufacture party authority. |
| Trap: two-thirds legislature-party strength is not itself a new political party. |
+-----+

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|
v

PANEL 03/12 - PARAGRAPH 2 GROUNDS AND MEMBER TYPES

```

+-----+
| Party member: voluntarily gives up membership OR violates para 2(1)(b). |
| Whip chain: authorised direction -> contrary vote/abstention -> no prior permission |
| -> no condonation by authorised party/person/authority within 15 days. |
| Independent: joins any political party after election -> disqualified. |
| Nominated: may join within 6 months of taking seat; joins later -> disqualified. |
| Para 2(4): historical transition for members sitting at 1985 commencement. |
+-----+

```

|
v

PANEL 04/12 - CONDUCT, EXPULSION AND EVIDENCE

```

+-----+
| Ravi S. Naik (1994): voluntary giving up is wider than formal resignation; |
| it may be inferred from proved conduct, context and chronology. |
| G. Viswanathan (1996): expulsion does not turn member into an independent; |
| deemed belonging to original party continues for Schedule purposes. |
| Fair route: allegation -> disclosed material -> reply/evidence -> reasoned inference. |
| Trap: criticism or dissent alone is not an automatic statutory formula. |
+-----+

```

|
v

PANEL 05/12 - PARAGRAPH 3 DELETED; PARAGRAPH 4 MERGER

```

+-----+
| 91st Amendment omitted the former one-third split defence from 1 January 2004. |
| Para 4 requires original-political-party merger within its full textual design. |
| Not less than two-thirds of legislature party must agree for merger deeming. |
| Accepting members and non-accepting members opting for separate group are protected. |
| Merger != post-election coalition; ECI symbol recognition alone is not the test. |
| Trap: two-thirds is necessary within para 4, not a free-standing licence to defect. |
+-----+

```

|
v

PANEL 06/12 - PARAGRAPHS 5, 6, 7 AND 8

```

+-----+
| Para 5: narrow exemption for listed presiding officers leaving party for chair; |
| no joining while in office; rejoining former party after ceasing office permitted. |
| Para 6: Speaker/Chairman decides; if personally concerned, House elects member. |
| Para 7 printed court-ouster text is invalid under Kihoto for want of ratification. |
| Para 8: rules on records/reports/procedure, laid for 30 days before House; |
| rules cannot enlarge grounds or remove notice, evidence, hearing and reasons. |
+-----+

```

|
v

PANEL 07/12 - KIHOTO AND JUDICIAL REVIEW

```

+-----+
| Kihoto Hollohan (1992): core Schedule and para 6 substantially upheld. |
| Speaker/Chairman deciding defection acts as a tribunal. |
| Review survives under Arts 136, 226 and 227: constitutional violation, mala fides, |
| natural-justice breach and perversity; it is not a routine merits appeal. |
| Ordinarily review follows decision; grave irreversible interlocutory harm is exceptional. |
| Basic-structure judicial review defeated para 7, not the whole 52nd Amendment. |
+-----+

```

+-----+ v	
PANEL 08/12 - INACTION, RESIGNATION AND TIMING	
+-----+	
Rajendra Singh Rana (2007): unsupported split recognition and failure to decide	
pending disqualification could not defeat the Schedule.	
Shrimanth Balasaheb Patil (2019): resignation does not erase earlier defection;	
Speaker cannot add a term-long election ban absent constitutional authority.	
Keisham (2020): ordinarily decide within 3 months, exceptions supported by reasons;	
three months is judicial norm, not express Schedule text; tribunal is proposal.	
+-----+	
 v	
PANEL 09/12 - NABAM REBIA AND SUBHASH DESAI	
+-----+	
Nabam Rebia (2016): Speaker facing valid removal notice disabled from adjudicating.	
Subhash Desai (2023): correctness referred for larger-bench reconsideration.	
No later official merits ruling located through 8 September 2026: state both facts.	
Subhash: political party appoints whip/leader; Speaker identifies party authorisation.	
ECI symbol and Speaker defection tracks may proceed independently.	
Governor cannot decide intra-party leadership; Court is not ordinary first instance.	
+-----+	
 v	
PANEL 10/12 - 91ST-AMENDMENT REWARD CONTROLS	
+-----+	
Art 75(1A): Union Council of Ministers <= 15% of Lok Sabha.	
Art 164(1A): State Council <= 15% of Assembly, but at least 12 ministers.	
Arts 75(1B)/164(1B): para-2-disqualified party member barred from ministership.	
Art 361B: same period bars a remunerative political post.	
Period: disqualification -> old-term expiry OR earlier date declared re-elected.	
Trap: no permanent electoral ban and no bar ending merely at next session.	
+-----+	
 v	
PANEL 11/12 - DEMOCRATIC BALANCE AND LEGAL FIREWALL	
+-----+	
Gain: mandate protection, stable ministry, reduced open office-driven crossing.	
Cost: broad whips, leadership centralisation, delayed Speaker orders, group engineering.	
Current law does not limit whips only to confidence or Money Bills.	
Merger != coalition defection != symbol dispute defection != bribery/privilege.	
Sita Soren (2024): bribery lacks legislative-privilege immunity; not a defection case.	
Reform: narrower whip + neutral/time-bound decider + clearer merger + party democracy.	
+-----+	
 v	
PANEL 12/12 - PYQ FILTER, ANSWER SPINE AND VERDICT	
+-----+	
2022 Prelims Q16: nominated member may join within 6 months; no textual deadline.	
2025 Prelims Q88: para 6 decider is Speaker/Chairman; 'political party' is in Constitution.	
2023 GS-II supporting route: presiding-officer order, impartiality and good practice.	
Prelims: category -> conduct -> time -> defence -> decider -> review -> consequence.	
Mains: purpose -> text -> case -> incentive -> counter -> reform status -> verdict.	
Verdict: retain stability principle; narrow discipline, neutralise decision and ensure	
speed.	
+-----+	

SESSION 1 - THE CONSTITUTIONAL BARGAIN AND 1985 INSERTION

VISUAL FIRST

1967 instability -> Committee on Defections -> 52nd Amendment, 1985
-> Articles 101/102/190/191 + Tenth Schedule -> seat consequence

DEFINITION

Anti-defection law is the constitutional disqualification code in the Tenth Schedule for specified party-linked conduct by legislators.

ANSWER-GRABBING LINE

The Tenth Schedule constitutionalises party discipline, but its legitimacy depends on preserving review, fair procedure and space for representative deliberation.

MUST-WRITE KEYWORDS

52nd Amendment | Tenth Schedule | Articles 101, 102, 190, 191 | stability | representation

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: The 52nd Amendment converted recurrent floor-crossing from a political convention problem into a constitutional ground of disqualification. **Named evidence:** The Constitution (Fifty-second Amendment) Act, 1985 inserted the Tenth Schedule and amended Articles 101, 102, 190 and 191; the official consolidation records commencement on 1 March 1985. **Analysis:** Articles 102(2) and 191(2) create the defection ground, while Articles 101(3)(a) and 190(3)(a) connect that ground to vacation of the parliamentary or State legislative seat. **Qualification:** Defection is not a crime, and the Schedule does not create a lifetime political disability.

EVIDENCE AND EXPLANATION

The historical memory is the post-1967 pattern popularly called 'Aaya Ram, Gaya Ram'. Use that phrase only as background. The legal answer begins with the 52nd Amendment and the Schedule. Article 102(2) means that a person is disqualified for membership of either House of Parliament if disqualified under the Tenth Schedule; Article 191(2) performs the same function for a State House. These clauses must not be confused with the ordinary disqualifications in Articles 102(1) and 191(1).

PRELIMS TRAP

- Do not place anti-defection in the Ninth Schedule or say that Articles 101 and 190 themselves define every ground.

MAINS USE

- Use the four-Article chain to show creation of the ground, adjudication under the Schedule and resulting vacancy.

RECAP

- 1985 created the constitutional code: 102(2)/191(2) supply the ground; 101/190 supply the vacancy link.

SESSION 2 - PARAGRAPH 1: THE DEFINITIONS THAT CONTROL THE SCHEDULE

VISUAL FIRST

HOUSE -> either House of Parliament / Legislative Assembly / either State House

POLITICAL PARTY -> organisational source of belonging and direction

LEGISLATURE PARTY -> that party's members within the particular House

ORIGINAL POLITICAL PARTY -> party to which the member belongs for para 2(1)

DEFINITION

Paragraph 1 is the interpretation clause that separates the political organisation from its House-level legislative group.

ANSWER-GRABBING LINE

Most merger and whip errors begin by treating the political party and legislature party as interchangeable.

MUST-WRITE KEYWORDS

House | legislature party | original political party | political organisation | House-specific group

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: The legislature party is a House-specific group, not a substitute political organisation. **Named evidence:** Paragraph 1 defines 'House', 'legislature party', 'original political party' and 'paragraph'; paragraph 2 supplies the deemed-belonging rules used by those definitions. **Analysis:** The distinction preserves the electoral party's authority under paragraph 2 while giving legislature-party numbers a limited role under paragraph 4. **Qualification:** A party-identity dispute still requires evidence from the party constitution, authorised organs and surrounding facts.

EVIDENCE AND EXPLANATION

A legislature party consists of all members of that House who for the time being belong to the political party under the Schedule. The original political party is the party to which the member belongs for paragraph 2(1). Thus, the organisational party sets up candidates and authorises directions; the legislature party is the corresponding bloc inside one House. Subhash Desai (2023) makes this distinction operational for the whip and leader.

PRELIMS TRAP

- Two-thirds of a legislature party is not, by definition alone, a new political party.

MAINS USE

- Define both entities before analysing a whip, rival leadership claim or paragraph 4 defence.

RECAP

- Organisation and House bloc are related but legally distinct; use the right entity for the right function.

SESSION 3 - PARAGRAPH 2(1)(a): VOLUNTARILY GIVING UP MEMBERSHIP

VISUAL FIRST

FORMAL RESIGNATION from party ----+
PUBLIC ALIGNMENT / CONDUCT -----> fact-sensitive inference -> para 2(1)(a)
ISOLATED CRITICISM -----+ may be insufficient without context

DEFINITION

'Voluntarily giving up membership' is a substantive change of political allegiance that may be proved without a formal resignation letter.

ANSWER-GRABBING LINE

Paragraph 2(1)(a) looks to prove allegiance, not merely the paperwork of party membership.

MUST-WRITE KEYWORDS

paragraph 2(1)(a) | voluntarily gives up | conduct | inference | Ravi S. Naik

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: A member cannot avoid disqualification merely by retaining nominal membership while acting as though allegiance has been abandoned. **Named evidence:** Ravi S. Naik v Union of India (1994) held that voluntarily giving up membership is wider than formal resignation and may be inferred from conduct. **Analysis:** The wider test prevents evasion, but it also makes evidence, context and procedural fairness decisive. **Qualification:** No single act such as criticism, absence from a meeting or contact with opponents is an automatic statutory formula.

EVIDENCE AND EXPLANATION

The decision-maker should identify conduct, chronology and the inference drawn: public declarations, support to a rival formation, acceptance of rival leadership or a connected course of action may be relevant. The conclusion must be reasoned and preceded by an opportunity to answer the material. Party expulsion is separately controlled by G. Viswanathan and does not automatically convert the member into an independent.

PRELIMS TRAP

- Do not write 'voluntarily giving up equals resignation' or 'every dissent proves defection'.

MAINS USE

- Apply facts to allegiance, then add the safeguard that inference must be evidence-based and procedurally fair.

RECAP

- Substance prevails over form, but inference is never a licence for automatic disqualification.

SESSION 4 - PARAGRAPH 2(1)(b): THE EXACT WHIP-VOTE TEST

VISUAL FIRST

valid party direction -> vote OR abstention contrary to it
-> no prior permission
-> no condonation within 15 days from vote/abstention
-> disqualification ground, subject to paras 4 and 5

DEFINITION

Paragraph 2(1)(b) is a cumulative test for contrary voting or abstention against an authorised party direction.

ANSWER-GRABBING LINE

The constitutional voting ground is direction-specific and cure-sensitive, not a general prohibition on speech or conscience.

MUST-WRITE KEYWORDS

direction | authorised person | vote | abstention | prior permission | fifteen-day condonation

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: Disqualification for whip defiance requires the textual chain of direction, contrary vote or abstention, lack of prior permission and absence of timely condonation. **Named evidence:** Paragraph 2(1)(b) expressly permits prior permission and post-event condonation by the party, person or authority within fifteen days. **Analysis:** The cure structure shows that the Schedule protects authorised party discipline rather than mechanically punishing every departure. **Qualification:** The present text does not confine disqualifying directions to confidence or Money Bills; narrowing the whip is a reform proposal, not current law.

EVIDENCE AND EXPLANATION

Subhash Desai (2023) holds that the political party, not a breakaway legislature-party faction acting alone, appoints the whip and leader. A speech, committee disagreement or policy criticism unconnected with contrary voting/abstention does not by itself complete paragraph 2(1)(b), though conduct may separately matter under paragraph 2(1)(a).

PRELIMS TRAP

- Do not say that every dissent attracts disqualification or that current law constitutionally limits whips to confidence and money votes.

MAINS USE

- Write the cumulative four-step test and then evaluate the democratic cost of broad directions.

RECAP

- Direction + contrary vote/abstention + no prior permission + no 15-day condonation is the safe exam formula.

SESSION 5 - PARAGRAPH 2 MEMBER CATEGORIES AND TRANSITIONAL DEEMING

VISUAL FIRST

PARTY-TICKET MEMBER -> deemed to belong to party that set up candidate

INDEPENDENT -> joins any party after election = disqualified

NOMINATED -> may join within 6 months of taking seat; joins later = disqualified

1985 SITTING MEMBERS -> para 2(4) transitional classification

DEFINITION

Paragraph 2 uses category-specific rules because electoral and nominated entry routes differ.

ANSWER-GRABBING LINE

Never transfer the nominated member's six-month window to an independent member.

MUST-WRITE KEYWORDS

set up as candidate | independent | nominated | six months | takes seat | paragraph 2(4)

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: The Schedule protects the political identity on which the member entered the House. **Named evidence:** The explanation to paragraph 2(1), paragraphs 2(2), 2(3) and the commencement-focused paragraph 2(4) supply the relevant deeming and joining rules. **Analysis:** A party-ticket member is tied to the party that set up the candidacy; an independent was elected without such sponsorship; a nominated member receives a limited initial choice.

Qualification: For a nominated member, six months runs from taking the seat after complying with Article 99 or 188, not from nomination or publication of the name.

EVIDENCE AND EXPLANATION

A nominated member already belonging to a party at nomination is deemed to belong to it. If not, the first party joined within six months becomes the party of deemed belonging. Paragraph 2(4) is a historical transitional rule for persons who were already members when the 52nd Amendment commenced; it is not a fresh modern grace period.

PRELIMS TRAP

- Independent: no six-month window. Nominated: joining within six months is permitted, not prohibited.

MAINS USE

- A three-row table is the fastest way to answer member-category questions accurately.

RECAP

- Ticket fixes belonging; independence bars later joining; nomination permits one bounded six-month choice.

SESSION 6 - PARAGRAPH 3 DELETION AND THE 91ST AMENDMENT RESET

VISUAL FIRST

OLD PARA 3: one-third split defence --X omitted
91st Amendment -> no live split defence + ministry caps + office-reward bars
SURVIVING GROUP ROUTE -> paragraph 4 merger only

DEFINITION

The 91st Amendment removed the former one-third split defence and strengthened anti-reward controls.

ANSWER-GRABBING LINE

The one-third split is constitutional history, not a current defence.

MUST-WRITE KEYWORDS

91st Amendment | paragraph 3 omitted | one-third split | 1 January 2004 | anti-reward

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: Deleting paragraph 3 closed the express protection for a one-third faction. **Named evidence:** The Constitution (Ninety-first Amendment) Act, 2003 omitted paragraph 3 and took effect on 1 January 2004 while adding Articles 75(1A), 75(1B), 164(1A), 164(1B) and 361B. **Analysis:** The amendment attacked both group fragmentation and the ministerial incentives that often fuelled it. **Qualification:** It retained paragraph 4; therefore group realignment was narrowed, not abolished.

EVIDENCE AND EXPLANATION

The Union ministry cap is fifteen per cent of Lok Sabha strength. The State ministry cap is fifteen per cent of Assembly strength, with a minimum of twelve. The defector-specific minister and remunerative-political-post bars apply to a member disqualified under paragraph 2 for the constitutionally defined period.

PRELIMS TRAP

- Do not revive the one-third split or describe the 91st Amendment as creating the Tenth Schedule.

MAINS USE

- Contrast 52nd creation with 91st tightening and reward control.

RECAP

- 52nd created; 91st deleted split, capped ministries and blocked office rewards.

SESSION 7 - PARAGRAPH 4: MERGER, TWO-THIRDS AND THE ORIGINAL PARTY

VISUAL FIRST

original political party merges with another party
+ not less than 2/3 of legislature party agree
-> para 4 deeming protection
-> accepting members OR non-accepting separate group protected

DEFINITION

Paragraph 4 is a merger defence, not a free-standing licence for two-thirds of legislators to change parties.

ANSWER-GRABBING LINE

Two-thirds measures agreement inside the legislature party; it does not erase the original-political-party element.

MUST-WRITE KEYWORDS

paragraph 4 | merger | original political party | legislature party | two-thirds | separate group

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: Paragraphs 4(1) and 4(2) must be read together before granting protection. **Named evidence:** The text links non-disqualification to merger of the original political party and deems such merger for Schedule purposes when not less than two-thirds of the legislature party concerned agree. **Analysis:** The threshold prevents a small faction from claiming merger, while the original-party language resists conversion of headcount into an autonomous party-changing power. **Qualification:** Symbol recognition by the Election Commission may be relevant to a separate proceeding, but it is not alone the constitutional test for paragraph 4.

EVIDENCE AND EXPLANATION

Members who accept the merger may become members of the resulting or other party; members who do not accept it and opt to function as a separate group receive the textual protection specified by paragraph 4. A post-election coalition between parties is cooperation, not automatically a merger of their organisations. Subhash Desai rejects use of the deleted split logic to validate a faction merely because it has legislative numbers.

PRELIMS TRAP

- Do not say 'two-thirds means the entire original party' or 'two-thirds MLAs may automatically defect'.

MAINS USE

- Frame merger as organisation + threshold + protected choices, then assess wholesale-defection incentives.

RECAP

- Two-thirds is necessary within paragraph 4's merger design; it is not a stand-alone safe harbour.

SESSION 8 - PARAGRAPH 5: THE NARROW PRESIDING-OFFICER EXEMPTION

VISUAL FIRST

elected to listed presiding office -> gives up party because of that election
-> remains outside parties while holding office
-> may rejoin that party after ceasing office
-> no paragraph 2 disqualification for those exact acts

DEFINITION

Paragraph 5 protects specified presiding officers who relinquish party membership to preserve the chair's neutrality.

ANSWER-GRABBING LINE

The exemption follows exact offices, reasons and timing; it is not a general privilege of officeholders.

MUST-WRITE KEYWORDS

paragraph 5 | Speaker | Deputy Speaker | Deputy Chairman | Chairman | neutrality | rejoining

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: The Constitution encourages institutional detachment without giving every presiding officer blanket immunity.

Named evidence: Paragraph 5 lists the Speaker/Deputy Speaker of Lok Sabha, Deputy Chairman of Rajya Sabha, Chairman/Deputy Chairman of a Legislative Council and Speaker/Deputy Speaker of an Assembly. **Analysis:**

Protection removes the defection penalty for giving up membership because of election to the chair and for rejoining the former party after leaving office. **Qualification:** The Rajya Sabha Chairman is not listed because the Vice-President is ex officio Chairman and not a member of that House.

EVIDENCE AND EXPLANATION

While holding the office, the protected member must not rejoin the former party or become a member of another political party. The exemption does not validate unrelated contrary voting, strategic factional change or a minister's claim of neutrality.

PRELIMS TRAP

- Do not generalise paragraph 5 to all ministers, committee chairs or constitutional authorities.

MAINS USE

- Use paragraph 5 to connect anti-defection with the constitutional aspiration of impartial presiding offices.

RECAP

- Exact office + chair-linked exit + no party joining while in office + permitted later re-entry.

SESSION 9 - PARAGRAPH 6: DECISION AUTHORITY AND LEGISLATIVE-PROCEEDING DEEMING

VISUAL FIRST

question of disqualification -> Speaker/Chairman decides
question concerns that Speaker/Chairman -> House elects another member to decide
proceedings -> deemed legislative proceedings for Articles 122/212

DEFINITION

Paragraph 6 assigns first-instance adjudication to the presiding officer of the House.

ANSWER-GRABBING LINE

Courts review legality; they do not ordinarily replace the Speaker or Chairman as the first fact-finder.

MUST-WRITE KEYWORDS

paragraph 6 | Speaker | Chairman | House-elected member | finality | Articles 122 and 212

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: The Schedule creates a specialised House-based adjudicator with a conflict-of-interest substitute. **Named evidence:** Paragraph 6(1) declares the presiding officer's decision final, subject to Kihoto's surviving judicial review; its proviso requires a member elected by the House when the question concerns the Speaker or Chairman. **Analysis:** The arrangement keeps the initial factual inquiry in the House while constitutional review checks jurisdiction, fairness and abuse. **Qualification:** Finality is not immunity, and the proviso is not an Election Commission referral.

EVIDENCE AND EXPLANATION

Paragraph 6(2) deems proceedings under paragraph 6 to be proceedings in Parliament or a State Legislature for Articles 122 or 212. Kihoto nevertheless treats the presiding officer as a tribunal when deciding disqualification. This dual character explains why internal procedure and external constitutional review coexist.

PRELIMS TRAP

- Do not say the President, Governor, ECI or court ordinarily decides a paragraph 6 petition at first instance.

MAINS USE

- Evaluate the institutional advantage of familiarity against partisan incentives and delay.

RECAP

- Speaker/Chairman first; House-elected substitute if personally concerned; judicial review remains.

SESSION 10 - PARAGRAPH 7 AND KIHOTO HOLLOHAN: PRINTED BAR, INVALID OUSTER

VISUAL FIRST

PARA 7 TEXT: no court jurisdiction over Schedule disqualification matters

- > altered Arts 136/226/227 field
- > no half-State ratification
- > invalid under Article 368 proviso
- > judicial review survives

DEFINITION

Paragraph 7 contains an ouster clause, but Kihoto Hollohan (1992) held it constitutionally invalid for want of required State ratification.

ANSWER-GRABBING LINE

Write both the printed text and its legal invalidity; omitting either half creates a wrong answer.

MUST-WRITE KEYWORDS

paragraph 7 | Article 368 ratification | basic structure | tribunal | judicial review | Kihoto Hollohan

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: Kihoto upheld the core anti-defection scheme while refusing to permit unratified exclusion of constitutional courts. **Named evidence:** The majority sustained paragraph 6 and most of the Schedule, treated the presiding officer as a tribunal and preserved review under Articles 136, 226 and 227. **Analysis:** The judgment balanced legislative allocation with the basic-structure value of judicial review. **Qualification:** Review is limited rather than a full appeal and ordinarily follows the presiding officer's decision; exceptional interlocutory intervention may address grave, immediate and irreversible consequences.

EVIDENCE AND EXPLANATION

Kihoto identifies review for constitutional mandate violation, mala fides, non-compliance with natural justice and perversity. Paragraph 7 required ratification by at least half the States because it affected constitutional court jurisdiction; the 52nd Amendment had not obtained that ratification. The invalidity of paragraph 7 did not invalidate the rest of the Schedule.

PRELIMS TRAP

- Do not say paragraph 7 fully bars review or that the whole 52nd Amendment failed.

MAINS USE

- Use Kihoto as a two-part holding: scheme substantially valid, total court ouster invalid.

RECAP

- Review is part of the constitutional settlement, but it is supervisory, not routine rehearing.

SESSION 11 - PARAGRAPH 8: RULE-MAKING, PROCEDURE, EVIDENCE AND FAIRNESS

VISUAL FIRST

para 8 power -> Speaker/Chairman makes House rules
records/registers + leader reports + petition procedure
rules laid before House for 30 days -> approval/modification/disapproval
notice + evidence + hearing + reasoned order -> fair adjudication

DEFINITION

Paragraph 8 authorises procedural rules; it does not permit rules to rewrite the substantive Schedule.

ANSWER-GRABBING LINE

A disqualification ground may be constitutional, but liability still requires a fair, evidence-based adjudication.

MUST-WRITE KEYWORDS

paragraph 8 | rule-making | laying | petition | notice | evidence | natural justice | reasoned order

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: Procedure operationalises the Schedule and protects against unsupported political accusation. **Named**

evidence: Paragraph 8 permits rules concerning party records, reports by legislature-party leaders and the procedure for deciding paragraph 6 questions; rules are laid before the House for a total period of thirty days and remain subject to House approval, modification or disapproval. **Analysis:** Notice, opportunity to respond, relevant documents and a reasoned conclusion convert political allegations into an adjudicative record capable of review. **Qualification:** House rules vary and cannot narrow constitutional defences, expand grounds or eliminate natural justice.

EVIDENCE AND EXPLANATION

The petitioner must establish material facts and supporting material. The member must know the case and receive a reasonable chance to answer. The Speaker may examine authorisation, party records, communications, votes and conduct. Paragraph 8 also permits rule-based treatment of wilful contravention as a breach of privilege, but that procedural enforcement is distinct from proving paragraph 2 disqualification.

PRELIMS TRAP

- Do not treat a party letter as self-executing disqualification or a procedural defect as automatically outcome-determinative.

MAINS USE

- Show how fair procedure improves both legitimacy and judicial-review resilience.

RECAP

- Rules organise proof; they cannot replace the Schedule, the hearing or the reasoned decision.

SESSION 12 - RAVI S. NAIK, G. VISWANATHAN AND RAJENDRA SINGH RANA

VISUAL FIRST

Ravi S. Naik (1994) -> conduct can prove voluntary giving up
G. Viswanathan (1996) -> expulsion does not erase deemed party belonging
Rajendra Singh Rana (2007) -> unsupported split/inaction cannot defeat para 2

DEFINITION

These cases close three evasion routes: nominal membership, claimed independence after expulsion and strategic avoidance of the disqualification question.

ANSWER-GRABBING LINE

The case-law spine should be written as controlled propositions, not political narratives.

MUST-WRITE KEYWORDS

conduct | deemed belonging | expulsion | inaction | split claim | Rajendra Singh Rana

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: Judicial doctrine prevents form, party discipline and delay from hollowing out the Schedule. **Named evidence:** Ravi S. Naik, G. Viswanathan v Speaker, Tamil Nadu Legislative Assembly (1996), and Rajendra Singh Rana v Swami Prasad Maurya (2007) supply the controlling propositions. **Analysis:** Together they require the adjudicator to examine substantive allegiance, continuing deemed status and the actual disqualification question. **Qualification:** Rajendra Singh Rana concerned the now-deleted split regime; use it for adjudicatory failure and unsupported group claims, not as a modern paragraph 4 holding.

EVIDENCE AND EXPLANATION

G. Viswanathan held that an expelled member does not become an independent for the Schedule; deemed belonging to the original party continues, and joining another party can attract disqualification. Rajendra Singh Rana rejected the Speaker's recognition of an alleged split without first deciding pending disqualification petitions and without adequate proof; constitutional inaction could not protect members whose disqualifying conduct had occurred.

PRELIMS TRAP

- Do not say expulsion itself always disqualifies, or that Rajendra preserved a present one-third defence.

MAINS USE

- Use the trio to demonstrate anti-evasion doctrine and the need for evidence-led adjudication.

RECAP

- Conduct, deemed belonging and timely decision stop formal manoeuvres from replacing constitutional substance.

SESSION 13 - RESIGNATION VERSUS DISQUALIFICATION: SHRIMANTH BALASAHEB PATIL

VISUAL FIRST

alleged defection -> petition pending -> resignation tendered
-> resignation does not erase antecedent jurisdiction
-> Speaker may decide both questions
-> no extra term-long contest ban beyond Constitution

DEFINITION

Resignation under Articles 101 or 190 and disqualification under the Tenth Schedule are distinct constitutional tracks.

ANSWER-GRABBING LINE

A resignation cannot wash away completed disqualifying conduct, but the Speaker cannot invent an additional electoral disability.

MUST-WRITE KEYWORDS

resignation | antecedent conduct | jurisdiction | Shrimanth Balasaheb Patil | re-election

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: The legal sequence turns on when the alleged defection occurred, not on which paper the Speaker signs first. **Named evidence:** Shrimanth Balasaheb Patil v Karnataka Legislative Assembly Speaker (2019) held that resignation does not end jurisdiction over prior disqualifying conduct and set aside the Speaker's attempt to bar the members from contesting elections for the remainder of the term. **Analysis:** The holding blocks resign-and-escape tactics while preserving the Constitution's exhaustive consequences. **Qualification:** Acceptance of a genuine resignation may vacate the seat, but it does not retrospectively decide whether paragraph 2 was already attracted.

EVIDENCE AND EXPLANATION

The Speaker examines resignation for voluntariness and genuineness under the relevant Article and separately adjudicates the defection petition. A member validly disqualified may contest again if otherwise eligible. If declared elected before the old term expires, the 91st-Amendment minister/post disability ends under its own text.

PRELIMS TRAP

- Do not say resignation automatically removes Speaker jurisdiction or that every disqualified member is barred from re-election until term-end.

MAINS USE

- Use chronology to explain the anti-evasion rule and the limit on Speaker-created sanctions.

RECAP

- Resignation and disqualification may coexist; antecedent defection survives, extra punishment does not.

SESSION 14 - DELAY AND KEISHAM MEGHACHANDRA SINGH

VISUAL FIRST

Schedule: no express deadline

- > unreasonable Speaker delay can alter majority
- > Keisham (2020): ordinarily within 3 months from filing
- > exceptions require reasons
- > Parliament urged to consider independent tribunal

DEFINITION

Timeliness is a constitutional effectiveness problem because delayed adjudication can determine government survival before legality is decided.

ANSWER-GRABBING LINE

The three-month standard is a judicial norm, not a number written into the Tenth Schedule.

MUST-WRITE KEYWORDS

reasonable period | three months | exceptional circumstances | reasons | independent tribunal

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: A power to decide cannot be converted into a power to neutralise the Schedule through inaction. **Named evidence:** Keisham Meghachandra Singh v Speaker, Manipur Legislative Assembly (2020) stated that, absent exceptional circumstances, disqualification petitions should be decided within three months from filing and urged Parliament to consider a permanent independent tribunal. **Analysis:** A time norm protects the electoral mandate and prevents tactical postponement until a floor test, ministry change or near expiry of the House. **Qualification:** The Court's tribunal suggestion remains a reform proposal; no constitutional amendment has transferred ordinary first-instance power.

EVIDENCE AND EXPLANATION

Rajendra Singh Rana supplies the earlier anti-inaction foundation. Courts may direct the Speaker to decide within a specified period and review disabling inaction, but ordinarily should not decide disputed facts at first instance when the constitutional authority can still act.

PRELIMS TRAP

- Do not answer the 2022 PYQ by treating three months as an express Schedule deadline.

MAINS USE

- Distinguish text, judicial norm and proposed institutional redesign.

RECAP

- No textual deadline does not mean unlimited delay; three months is the ordinary judicial benchmark.

SESSION 15 - NABAM REBIA AND THE PENDING REMOVAL-NOTICE PROBLEM

VISUAL FIRST

notice of Speaker-removal resolution under Art 179(c)

- > Nabam Rebia (2016): Speaker disabled from deciding defection
- > strategic-notice concern
- > Subhash Desai (2023): correctness referred to larger bench
- > no later merits ruling located by 8 Sep 2026

DEFINITION

Nabam Rebia concerns whether a Speaker facing a constitutionally valid removal notice may adjudicate disqualification petitions.

ANSWER-GRABBING LINE

State Nabam's rule and the unresolved larger-bench reconsideration together.

MUST-WRITE KEYWORDS

Article 179(c) | removal notice | institutional bias | Nabam Rebia | larger-bench reference

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: The 2016 rule sought to prevent a threatened officeholder from using disqualification to reshape the electorate for the removal motion. **Named evidence:** Nabam Rebia and Bamang Felix v Deputy Speaker (2016) held that the Speaker should not decide disqualification petitions while a notice for removal was pending. **Analysis:** The rule protects impartiality but may invite tactical removal notices designed to disable the adjudicator. **Qualification:** Subhash Desai (2023) referred the correctness of the proposition for larger-bench reconsideration; no later official merits disposition was located through 8 September 2026.

EVIDENCE AND EXPLANATION

Until reconsidered, do not describe Nabam as overruled. Also do not convert any informal political demand into the constitutional notice contemplated by Article 179(c). The exact validity and stage of the removal notice matter.

PRELIMS TRAP

- Do not say a Speaker loses jurisdiction automatically upon a member's resignation; Nabam concerns a notice for the Speaker's own removal.

MAINS USE

- Present the conflict as bias control versus strategic paralysis, then state the pending status.

RECAP

- Nabam's removal-notice disability remains the operative proposition, under unresolved larger-bench scrutiny.

SESSION 16 - SUBHASH DESAI (2023): PARTY, WHIP, SPEAKER, ECI AND GOVERNOR

VISUAL FIRST

POLITICAL PARTY -> appoints whip/leader

SPEAKER -> identifies authorised party and decides defection

ECI -> independently decides symbol dispute under Symbols Order

GOVERNOR -> constitutional functions; cannot decide intra-party leadership

COURTS -> review; not ordinary first-instance disqualification forum

DEFINITION

Subhash Desai separates the functions of the political party, legislature party, Speaker, Election Commission, Governor and courts.

ANSWER-GRABBING LINE

The Tenth Schedule protects organisational party authority; legislative headcount alone cannot manufacture the authorised whip.

MUST-WRITE KEYWORDS

political party | legislature party | whip | Speaker | Election Commission | Governor | parallel proceedings

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: The political party appoints the whip and leader for Tenth Schedule purposes. **Named evidence:** Subhash Desai v Principal Secretary, Governor of Maharashtra (2023) required the Speaker to identify the authorised political party through the party constitution and organisational material, not merely factional legislative numbers. **Analysis:** Functional separation prevents a symbol proceeding, floor-test dispute or factional claim from silently deciding the different constitutional question of defection. **Qualification:** The Supreme Court did not itself disqualify the members or restore the former government; the Chief Minister had resigned before the floor test.

EVIDENCE AND EXPLANATION

The Election Commission may decide a Symbols Order dispute while Speaker proceedings are pending because the two jurisdictions have different purposes. The Governor lacked objective material to call the impugned floor test merely on intra-party dissent. The Speaker must decide petitions within a reasonable period and cannot recognise a whip appointed only by the legislature-party faction.

PRELIMS TRAP

- Do not say ECI recognition alone proves paragraph 4 merger or that the Governor chooses the real political party.

MAINS USE

- Draw the institutional map and attach one precise function to each actor.

RECAP

- Party authorises; Speaker adjudicates; ECI handles symbols; Governor acts within constitutional limits; courts review.

SESSION 17 - THE 91ST-AMENDMENT OFFICE BARS AND CONSEQUENCES

VISUAL FIRST

paragraph 2 disqualification -> seat vacancy
+ Art 75(1B) Union minister bar
+ Art 164(1B) State minister bar
+ Art 361B remunerative-political-post bar
period ends at old-term expiry OR earlier declared re-election

DEFINITION

The direct consequence is loss of House membership; the 91st Amendment adds temporary anti-reward disabilities.

ANSWER-GRABBING LINE

The Constitution blocks immediate office rewards but does not impose a universal public-office or electoral ban.

MUST-WRITE KEYWORDS

Articles 75(1A)/(1B) | 164(1A)/(1B) | 361B | remunerative political post | declared elected

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: Office disabilities target the incentive to defect for executive or publicly remunerated political reward. **Named evidence:** Articles 75(1B), 164(1B) and 361B apply to a member of a House belonging to a political party who is disqualified under paragraph 2. **Analysis:** The disability lasts from disqualification until the date the original term would expire or, if the person contests earlier, the date declared elected, whichever is earlier. **Qualification:** Independent and nominated-member questions require attention to the exact constitutional wording linking these office bars to a member belonging to a political party.

EVIDENCE AND EXPLANATION

Article 361B defines remunerative political post through government or government-controlled bodies and public remuneration, subject to its exclusion for compensatory payments. Articles 75(1A) and 164(1A) separately cap ministry size; those caps are structural and not themselves a punishment imposed in an individual petition.

PRELIMS TRAP

- Do not say the bar lasts only until the next session, or that it permanently prevents re-election.

MAINS USE

- Connect disqualification, incentive control and the precise end-point of disability.

RECAP

- Seat loss is immediate; office-reward bars are temporary and textually bounded.

SESSION 18 - WHIP SCOPE, CONSCIENCE AND LEGISLATIVE DELIBERATION

VISUAL FIRST

BROAD CURRENT WHIP -> stability + mandate protection

but -> reduced dissent + weak scrutiny + leadership centralisation

NARROW-WHIP PROPOSAL -> confidence/no-confidence, money/supply, core survival votes

-> proposal only, not present constitutional limitation

DEFINITION

Whip scope is the law's central democratic-design question.

ANSWER-GRABBING LINE

Anti-defection can secure government survival while still over-centralising ordinary legislative judgment.

MUST-WRITE KEYWORDS

whip | confidence | money/supply | conscience | deliberation | intra-party democracy

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: Broad disqualification-backed directions strengthen party cohesion but can make representatives accountable upward to leadership rather than outward to the House and constituency. **Named evidence:** Paragraph 2(1)(b) contains no subject-matter list; Dinesh Goswami Committee and Law Commission reform discussions support narrower operation on high-stakes votes. **Analysis:** A narrower whip could preserve government stability where defeat changes the ministry while allowing policy amendment, committee scrutiny and constituency representation elsewhere. **Qualification:** Any narrowing requires legal change or disciplined party practice; it cannot be asserted as current constitutional law.

EVIDENCE AND EXPLANATION

The defence of the present law is substantial: voters often choose party programmes, governments require reliable majorities, and office-driven defections can overturn mandates. The criticism is equally substantial: leadership-controlled whips can suppress internal debate and transfer accountability from electors to party managers.

PRELIMS TRAP

- Do not equate a reform recommendation with the current Tenth Schedule.

MAINS USE

- Balance stability against representation instead of presenting conscience as absolute or party discipline as unlimited.

RECAP

- Retain discipline for government survival, but restore reasoned legislative space beyond it.

SESSION 19 - MERGER VERSUS COALITION, SYMBOL, PRIVILEGE AND OTHER REGIMES

VISUAL FIRST

MERGER -> para 4 organisational + two-thirds test

COALITION -> parties cooperate after election; organisations may remain separate

SYMBOL -> ECI / Symbols Order

DEFECTION -> Speaker/Chairman

BRIBERY/PRIVILEGE -> criminal law + Arts 105/194 after Sita Soren

DEFINITION

Several politically connected events belong to separate legal regimes and must not be conflated.

ANSWER-GRABBING LINE

Institutional accuracy often earns more marks than recounting political events.

MUST-WRITE KEYWORDS

merger | coalition | symbol dispute | privilege | bribery | Sita Soren | Article 103/192

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: A post-election coalition is not automatically a paragraph 4 merger, and a symbol order does not itself decide defection. **Named evidence:** The Tenth Schedule, Symbols Order, Articles 103/192, House privilege and criminal bribery law allocate different questions to different authorities. **Analysis:** Separation prevents one forum's finding from being treated as a universal answer to party identity, membership, vacancy or criminal liability. **Qualification:** Facts may overlap, and evidence from one proceeding may be relevant, but legal tests remain distinct.

EVIDENCE AND EXPLANATION

Under Articles 103 and 192, specified post-election disqualification questions under Articles 102(1) and 191(1) go to the President or Governor acting according to the Election Commission's opinion. *Sita Soren v Union of India* (2024) concerns the absence of legislative-privilege immunity for bribery linked to a vote or speech; it does not redefine paragraph 2 defection.

PRELIMS TRAP

- Do not use *Sita Soren* as an anti-defection holding or say courts ordinarily decide paragraph 2 first instance.

MAINS USE

- A comparison table clarifies authority, test and consequence for each regime.

RECAP

- Same politics, different legal questions: identify the correct test and decision-maker.

SESSION 20 - EFFECTIVENESS, PARTY DEMOCRACY AND REFORM

VISUAL FIRST

GAINS: curb open floor-crossing + support stable ministry

COSTS: wholesale engineering + resignation tactics + Speaker delay + broad whip

REFORM PACKAGE: neutral/time-bound decider + narrower whip + clearer merger test
+ reasoned party authorisation + stronger internal party democracy

DEFINITION

Reform should preserve the anti-corruption and stability rationale while correcting incentives that favour group engineering and partisan delay.

ANSWER-GRABBING LINE

The law is justified in principle but underperforms when procedure, party democracy and legislative freedom are weak.

MUST-WRITE KEYWORDS

retail defection | wholesale defection | neutral tribunal | fixed time | party democracy | proportional reform

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: The Tenth Schedule reduced visible individual floor-crossing yet redirected strategy toward larger groups, resignations and timing battles. **Named evidence:** The deleted split, surviving merger, Shrimanth, Keisham and Subhash Desai together reveal the modern incentive structure. **Analysis:** A coherent reform must address both the ground and the institution: narrow high-stakes whips, prompt neutral adjudication, transparent authorisation and a merger rule that cannot be satisfied by headcount alone. **Qualification:** An ECI-advice or tribunal model, statutory deadline and whip restriction remain proposals until enacted; reform must also preserve judicial review and natural justice.

EVIDENCE AND EXPLANATION

Internal party democracy matters because a whip issued by opaque leadership may be legally attributable to the party yet democratically thin. Reforms should therefore include recorded party decisions, accessible constitutions and reasoned communication to members, not merely a change of adjudicator.

PRELIMS TRAP

- Do not claim that deleting paragraph 4 alone solves resignations, bias or broad-whip effects.

MAINS USE

- Give a graded verdict: retain the principle, narrow the whip, neutralise adjudication and clarify merger.

RECAP

- Stability should be protected by precise, timely and democratically authorised discipline, not legislative servitude.

SESSION 21 - PRELIMS FILTER AND MAINS ANSWER ARCHITECTURE

VISUAL FIRST

PRELIMS: member type -> conduct -> permission/period -> defence -> decider -> review
MAINS: purpose -> exact text -> case holding -> institutional effect
-> counterargument -> reform status -> qualified conclusion

DEFINITION

Exam accuracy comes from applying a fixed sequence rather than recalling isolated slogans.

ANSWER-GRABBING LINE

The safest answer moves from constitutional text to institutional consequence and ends with a bounded reform verdict.

MUST-WRITE KEYWORDS

member type | conduct | fifteen days | six months | two-thirds | Speaker | judicial review

WRITE THE PARAGRAPH: CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Claim: A structured filter prevents close-option errors and generic Mains analysis. **Named evidence:** The 2022 and 2025 objective PYQs test nominated-member timing, absence of a textual deadline, paragraph 6 authority and the Constitution's use of 'political party'. **Analysis:** The same sequence scales into Mains by adding named cases, incentive analysis and a qualification that distinguishes current law from proposals. **Qualification:** Do not overload a 10-marker with every case; choose the authority that proves the disputed proposition.

EVIDENCE AND EXPLANATION

For a fact problem: identify category, paragraph 2 ground, paragraph 4/5 defence, paragraph 6 decider, procedure, review and consequence. For evaluation: add stability, representation, party democracy, delay, resignation and reforms. A high-quality paragraph follows claim -> named evidence -> analysis -> qualification.

PRELIMS TRAP

- Do not write a generic democracy paragraph without exact Schedule language.

MAINS USE

- Use the six-step Prelims filter and eight-part Mains spine shown in the visual.

RECAP

- Text first, holding second, institutional analysis third, reform status and qualified verdict last.

Exactly **32 original MCQs** appear before the PYQ section. Questions 25-32 are targeted remediation. Correct-answer sequence: ABCDABCDABCDABCDABCDABCDABCDABCD.

BASIC MCQS / REMEDIATION

MCQ 1. 52nd Amendment architecture

Which statement correctly describes the 52nd Amendment?

A. It inserted the Tenth Schedule and amended Articles 101, 102, 190 and 191. B. It inserted the Tenth Schedule but left seat-vacancy Articles untouched. C. It created only a statutory, not constitutional, disqualification. D. It omitted paragraph 3 and inserted Article 361B.

Answer: A. It inserted the Tenth Schedule and amended Articles 101, 102, 190 and 191.

Option-specific explanations:

- **A:** Correct: the four Articles and Tenth Schedule form the 1985 constitutional design.
- **B:** Incorrect: Articles 101 and 190 were amended to connect disqualification with vacancy.
- **C:** Incorrect: the ground is constitutional through Articles 102(2) and 191(2).
- **D:** Incorrect: those are 91st-Amendment changes effective in 2004.

Examiner trap 1: Separate the 52nd Amendment's creation from the 91st Amendment's tightening.

MCQ 2. Article decoder

Article 102(2) means that a person is disqualified for Parliament when:

A. the Election Commission independently declares a party split. B. the person is disqualified under the Tenth Schedule. C. the Council of Ministers advises the President to remove the member. D. the House passes an ordinary resolution by simple majority.

Answer: B. the person is disqualified under the Tenth Schedule.

Option-specific explanations:

- **A:** Incorrect: ECI does not independently decide paragraph 2 membership.
- **B:** Correct: Article 102(2) imports the Tenth Schedule ground for either House of Parliament.
- **C:** Incorrect: ministerial advice is not the paragraph 6 decision route.
- **D:** Incorrect: House resolution is not the constitutional test.

Examiner trap 2: Do not confuse Article 102(2) with Article 103 procedure for Article 102(1) questions.

MCQ 3. Paragraph 1 definitions

Which entity is the House-specific group of members belonging to one political party?

A. Original political party. B. Election symbol group. C. Legislature party. D. Coalition bloc.

Answer: C. Legislature party.

Option-specific explanations:

- **A:** Incorrect: original political party identifies organisational belonging for paragraph 2(1).
- **B:** Incorrect: symbol classification belongs to the Election Commission's separate field.
- **C:** Correct: paragraph 1 defines the legislature party by membership in that House.
- **D:** Incorrect: coalition cooperation does not create the defined legislature party.

Examiner trap 3: The political party and legislature party cannot be swapped in whip and merger analysis.

MCQ 4. Voluntary giving up

Ravi S. Naik (1994) is authority for which proposition?

A. Only a signed resignation proves defection. B. Party expulsion automatically ends deemed belonging. C. Courts must decide every petition before the Speaker. D. Voluntary giving up may be inferred from conduct without formal resignation.

Answer: D. Voluntary giving up may be inferred from conduct without formal resignation.

Option-specific explanations:

- **A:** Incorrect: the case rejects a resignation-only test.
- **B:** Incorrect: G. Viswanathan controls the expulsion issue.
- **C:** Incorrect: paragraph 6 leaves first-instance adjudication with the presiding officer.
- **D:** Correct: substantive conduct can establish abandonment of allegiance.

Examiner trap 4: Inference from conduct must still be supported by context, evidence and fair hearing.

MCQ 5. Whip test

A party member votes contrary to a valid direction without prior permission, but the authorised party authority condones the vote on day 12. The best conclusion is:

A. Paragraph 2(1)(b) is not completed because timely condonation cures the contrary vote. B. Disqualification is automatic at the moment of voting and cannot be cured. C. Condonation is effective only if granted by the Election Commission. D. The member remains disqualified unless two-thirds support the vote.

Answer: A. Paragraph 2(1)(b) is not completed because timely condonation cures the contrary vote.

Option-specific explanations:

- **A:** Correct: the text allows condonation within fifteen days by the authorised source.
- **B:** Incorrect: the constitutional cure period disproves automatic final liability.
- **C:** Incorrect: ECI is not the condoning authority under paragraph 2(1)(b).
- **D:** Incorrect: two-thirds belongs to paragraph 4 merger, not whip condonation.

Examiner trap 5: Prior permission and fifteen-day condonation are distinct routes.

MCQ 6. Dissent boundary

Which act, standing alone, least directly completes paragraph 2(1)(b)?

A. Abstaining contrary to a valid direction without permission. B. Delivering a critical speech without a contrary vote or abstention. C. Voting contrary to a valid direction without permission. D. Remaining absent where abstention itself violates a valid direction.

Answer: B. Delivering a critical speech without a contrary vote or abstention.

Option-specific explanations:

- **A:** Incorrect: contrary abstention is expressly covered.
- **B:** Correct: paragraph 2(1)(b) regulates voting or abstention, not speech by itself.
- **C:** Incorrect: contrary voting is the central textual trigger.
- **D:** Incorrect: an abstention contrary to direction may be covered on the facts.

Examiner trap 6: Do not convert political dissent into disqualification without matching a paragraph 2 ground.

MCQ 7. Independent member

An independently elected MLA becomes a formal member of a political party two months after election. Under paragraph 2:

A. The joining is protected for six months. B. The joining is protected if no whip is issued. C. The member is disqualified; independents have no six-month joining window. D. The member is protected if the party is part of the governing coalition.

Answer: C. The member is disqualified; independents have no six-month joining window.

Option-specific explanations:

- **A:** Incorrect: six months is the nominated-member rule.
- **B:** Incorrect: paragraph 2(2) turns on joining, not whip issuance.
- **C:** Correct: joining any political party after election attracts the independent-member ground.
- **D:** Incorrect: coalition status does not alter paragraph 2(2).

Examiner trap 7: Never transfer the nominated member's grace period to an independent.

MCQ 8. Nominated member

A person nominated to a House while unaffiliated first joins a party five months after taking the seat. Which is correct?

A. Joining is always prohibited for a nominated member. B. The President must first approve the joining. C. The member is treated as an independent forever. D. Joining within six months is permitted and fixes deemed party belonging.

Answer: D. Joining within six months is permitted and fixes deemed party belonging.

Option-specific explanations:

- **A:** Incorrect: the Schedule expressly permits the bounded initial choice.
- **B:** Incorrect: no presidential approval appears in paragraph 2(3).
- **C:** Incorrect: nomination and independent election are separate categories.
- **D:** Correct: the clock runs from taking the seat and the first timely party becomes relevant.

Examiner trap 8: The six months run from taking the seat, not nomination.

MCQ 9. Paragraph 3

What is the current status of the former one-third split defence?

A. It was omitted by the 91st Amendment and is no longer available. B. It survives for State legislatures but not Parliament. C. It survives whenever the Governor recognises a faction. D. It was converted into the paragraph 5 exemption.

Answer: A. It was omitted by the 91st Amendment and is no longer available.

Option-specific explanations:

- **A:** Correct: paragraph 3 was deleted with effect from 1 January 2004.
- **B:** Incorrect: deletion applies across the Tenth Schedule.
- **C:** Incorrect: gubernatorial recognition cannot revive omitted text.
- **D:** Incorrect: paragraph 5 concerns listed presiding officers.

Examiner trap 9: A one-third faction has no current split safe harbour.

MCQ 10. Merger elements

Which statement best states paragraph 4?

A. Any two-thirds of an original political party nationwide must merge. B. Protection operates within an original-party merger framework when at least two-thirds of the legislature party agree. C. Election Commission symbol recognition alone conclusively proves merger. D. A post-election coalition is automatically deemed a merger.

Answer: B. Protection operates within an original-party merger framework when at least two-thirds of the legislature party agree.

Option-specific explanations:

- **A:** Incorrect: the threshold is measured in the legislature party concerned, not nationwide membership.
- **B:** Correct: both original-party language and the two-thirds deeming rule matter.
- **C:** Incorrect: symbol jurisdiction and paragraph 4 adjudication are separate.
- **D:** Incorrect: coalition and organisational merger are distinct.

Examiner trap 10: Two-thirds is not a free-standing licence to switch parties.

MCQ 11. Non-accepting members

If paragraph 4 is validly engaged, members who do not accept the merger and opt to function as a separate group are:

A. automatically treated as independents for every purpose. B. required to join the merged party within fifteen days. C. protected in the manner specified by paragraph 4. D. disqualified unless the Governor recognises them.

Answer: C. protected in the manner specified by paragraph 4.

Option-specific explanations:

- **A:** Incorrect: paragraph 4 supplies a specific deemed political status, not generic independence.
- **B:** Incorrect: the fifteen-day rule concerns whip condonation.
- **C:** Correct: paragraph 4 expressly protects the non-accepting separate group.
- **D:** Incorrect: the Governor is not the paragraph 4 decider.

Examiner trap 11: Remember both protected choices under paragraph 4, not only the accepting group.

MCQ 12. Paragraph 5

Which office is expressly within paragraph 5's party-neutrality exemption?

A. Prime Minister. B. Chairperson of every House committee. C. Chief Whip. D. Deputy Chairman of the Rajya Sabha.

Answer: D. Deputy Chairman of the Rajya Sabha.

Option-specific explanations:

- **A:** Incorrect: ministerial office is not paragraph 5's neutrality route.
- **B:** Incorrect: committee chairs are not generically listed.
- **C:** Incorrect: a whip represents party discipline, not the protected chair.
- **D:** Correct: the Deputy Chairman of the Council of States is listed.

Examiner trap 12: The Rajya Sabha Chairman is ex officio Vice-President and is not the listed member-office.

MCQ 13. Paragraph 6 decider

Who ordinarily decides whether a Lok Sabha member is disqualified under the Tenth Schedule?

A. The Speaker of the Lok Sabha. B. The President on advice of the Union Council of Ministers. C. The Election Commission acting alone. D. A High Court as original fact-finder.

Answer: A. The Speaker of the Lok Sabha.

Option-specific explanations:

- **A:** Correct: paragraph 6 assigns the question to the Speaker.
- **B:** Incorrect: this misstates both the advice source and the applicable procedure.
- **C:** Incorrect: ECI's opinion belongs to different constitutional questions.
- **D:** Incorrect: judicial review does not ordinarily replace first-instance adjudication.

Examiner trap 13: Do not import Article 103 procedure into Article 102(2).

MCQ 14. Speaker concerned

If the disqualification question concerns the Speaker personally, paragraph 6 requires decision by:

A. the Deputy Speaker automatically. B. a member elected by the House for that purpose. C. the Election Commission after hearing the Speaker. D. the Governor or President, depending on the House.

Answer: B. a member elected by the House for that purpose.

Option-specific explanations:

- **A:** Incorrect: the proviso does not automatically designate the Deputy Speaker.
- **B:** Correct: the House elects a member to decide the question.
- **C:** Incorrect: paragraph 6 does not transfer the matter to ECI.
- **D:** Incorrect: the executive head is not the proviso's substitute.

Examiner trap 14: Use the exact House-elected-member proviso.

MCQ 15. Paragraph 7

Which is the legally accurate description of paragraph 7?

A. It was omitted by the 91st Amendment. B. It validly excludes every form of judicial review. C. Its court-ouster text remains printed but is invalid under Kihoto for want of ratification. D. It gives first-instance power to the Supreme Court.

Answer: C. Its court-ouster text remains printed but is invalid under Kihoto for want of ratification.

Option-specific explanations:

- **A:** Incorrect: paragraph 3, not paragraph 7, was omitted.
- **B:** Incorrect: Kihoto preserved constitutional judicial review.

- **C:** Correct: text and invalid legal effect must be stated together.
- **D:** Incorrect: paragraph 6 still allocates first instance to the presiding officer.

Examiner trap 15: Never quote the ouster text without Kihoto's invalidity holding.

MCQ 16. Kihoto review

Kihoto Hollohan permits judicial review principally for:

A. a complete rehearing of every factual disagreement. B. review only when the Election Commission consents. C. review only after the House term expires. D. constitutional violation, mala fides, natural-justice breach and perversity.

Answer: D. constitutional violation, mala fides, natural-justice breach and perversity.

Option-specific explanations:

- **A:** Incorrect: review is supervisory, not an ordinary appeal.
- **B:** Incorrect: ECI consent is not a jurisdictional gateway.
- **C:** Incorrect: review need not await expiry of the House.
- **D:** Correct: these are the controlled review grounds.

Examiner trap 16: Finality under paragraph 6 is compatible with limited judicial review.

MCQ 17. Paragraph 8

Paragraph 8 rules may validly provide for:

A. records, leader reports and procedure for deciding disqualification questions. B. new substantive grounds beyond paragraph 2. C. removal of the natural-justice requirement. D. automatic disqualification solely on party complaint.

Answer: A. records, leader reports and procedure for deciding disqualification questions.

Option-specific explanations:

- **A:** Correct: these are within the procedural rule-making field.
- **B:** Incorrect: subordinate House rules cannot amend the Schedule.
- **C:** Incorrect: fairness remains constitutionally required.
- **D:** Incorrect: complaint initiates inquiry; it does not itself prove liability.

Examiner trap 17: Procedure operationalises the Schedule but cannot rewrite it.

MCQ 18. Rajendra Singh Rana

Rajendra Singh Rana (2007) is most safely used for which proposition?

A. A one-third split remains valid today. B. Unsupported split recognition and disabling inaction cannot defeat the Schedule. C. The Election Commission must decide merger before the Speaker. D. A Speaker may recognise a faction without deciding pending petitions.

Answer: B. Unsupported split recognition and disabling inaction cannot defeat the Schedule.

Option-specific explanations:

- **A:** Incorrect: paragraph 3 has since been omitted.
- **B:** Correct: the Court addressed non-decision and inadequate proof.
- **C:** Incorrect: the case does not create that sequencing rule.
- **D:** Incorrect: that was the adjudicatory failure condemned.

Examiner trap 18: Use the case as anti-inaction authority, not as revival of deleted paragraph 3.

MCQ 19. Expulsion

After G. Viswanathan (1996), expulsion of a legislator from the party:

A. automatically makes the legislator an independent. B. automatically vacates the legislative seat. C. does not erase deemed belonging to the original party for Schedule purposes. D. transfers defection jurisdiction to the Election Commission.

Answer: C. does not erase deemed belonging to the original party for Schedule purposes.

Option-specific explanations:

- **A:** Incorrect: deemed belonging continues.
- **B:** Incorrect: expulsion and constitutional disqualification are distinct.
- **C:** Correct: the member cannot claim independent status merely from expulsion.
- **D:** Incorrect: paragraph 6 allocation remains unchanged.

Examiner trap 19: Expulsion is not itself the same legal event as Tenth Schedule disqualification.

MCQ 20. Resignation

A resignation tendered after alleged disqualifying conduct:

A. necessarily ends all Speaker jurisdiction. B. can be ignored forever without examining genuineness. C. automatically creates a term-long election ban. D. does not erase jurisdiction over antecedent defection.

Answer: D. does not erase jurisdiction over antecedent defection.

Option-specific explanations:

- **A:** Incorrect: Shrimanth rejects resignation as an automatic jurisdictional escape.
- **B:** Incorrect: resignation has its own constitutional inquiry.
- **C:** Incorrect: the Speaker cannot invent that additional disability.
- **D:** Correct: prior conduct remains adjudicable.

Examiner trap 20: Separate resignation validity, defection liability and later electoral eligibility.

MCQ 21. Keisham timing

Which statement accurately describes Keisham Meghachandra Singh (2020)?

A. It stated an ordinary three-month decision norm absent reasoned exceptional circumstances. B. It amended the Tenth Schedule to insert a ninety-day deadline. C. It permanently transferred all petitions to a retired-judge tribunal. D. It abolished judicial review of Speaker inaction.

Answer: A. It stated an ordinary three-month decision norm absent reasoned exceptional circumstances.

Option-specific explanations:

- **A:** Correct: the Court supplied an ordinary constitutional time norm.
- **B:** Incorrect: judicial decision did not amend the Schedule's text.
- **C:** Incorrect: tribunal was recommended to Parliament, not created.
- **D:** Incorrect: the case strengthens control over delay.

Examiner trap 21: Three months is a judicial benchmark, not express bare text.

MCQ 22. Nabam status

As of 8 September 2026, the safest statement on Nabam Rebia is:

A. It has been overruled by Parliament. B. Its removal-notice rule stands, while Subhash Desai referred its correctness for larger-bench reconsideration. C. It concerns resignation of ordinary members. D. It gives the Governor final power over defection.

Answer: B. Its removal-notice rule stands, while Subhash Desai referred its correctness for larger-bench reconsideration.

Option-specific explanations:

- **A:** Incorrect: no constitutional amendment overruled the case.
- **B:** Correct: state the operative proposition and unresolved reference together.
- **C:** Incorrect: it concerns notice for removal of the Speaker.
- **D:** Incorrect: paragraph 6 remains the adjudicatory source.

Examiner trap 22: Do not present the larger-bench question as already decided.

MCQ 23. Subhash whip

Under Subhash Desai (2023), the whip for Tenth Schedule purposes is appointed by:

A. the Governor after a floor test. B. the largest faction of the legislature party. C. the political party through its authorised structure. D. the Election Commission whenever a symbol dispute exists.

Answer: C. the political party through its authorised structure.

Option-specific explanations:

- **A:** Incorrect: the Governor does not appoint party whips.
- **B:** Incorrect: headcount alone cannot create authorisation.
- **C:** Correct: organisational party authority controls.
- **D:** Incorrect: symbol jurisdiction does not appoint the legislative whip.

Examiner trap 23: Political party and legislature party have different constitutional functions.

MCQ 24. Parallel tracks

Which pair may proceed on separate legal tracks under Subhash Desai?

A. A criminal trial and presidential election petition only. B. A privilege motion and every civil suit only. C. A Governor's party-membership decision and Speaker's symbol decision. D. ECI symbol proceedings and Speaker defection proceedings.

Answer: D. ECI symbol proceedings and Speaker defection proceedings.

Option-specific explanations:

- **A:** Incorrect: it does not answer the Tenth Schedule allocation at issue.
- **B:** Incorrect: the option is unrelated and overbroad.
- **C:** Incorrect: both roles are reversed or invented.
- **D:** Correct: the jurisdictions answer different legal questions.

Examiner trap 24: Parallel proceedings do not mean identical legal tests or binding outcomes.

MCQ 25. Council cap

Which statement on the 91st-Amendment ministry caps is correct?

A. Union ministers including the Prime Minister cannot exceed 15% of Lok Sabha; State ministers including the Chief Minister cannot exceed 15% of Assembly, with a State minimum of 12. B. Both Union and State ministries have a fixed minimum of twelve. C. The cap is ten per cent for every House. D. The cap is calculated from the total strength of both Houses combined.

Answer: A. Union ministers including the Prime Minister cannot exceed 15% of Lok Sabha; State ministers including the Chief Minister cannot exceed 15% of Assembly, with a State minimum of 12.

Option-specific explanations:

- **A:** Correct: this states Articles 75(1A) and 164(1A) accurately.
- **B:** Incorrect: the twelve-minister minimum is only for States.
- **C:** Incorrect: the constitutional percentage is fifteen.
- **D:** Incorrect: the reference House is Lok Sabha or the State Assembly.

Examiner trap 25: Separate the State minimum from the common fifteen-per-cent ceiling.

MCQ 26. Minister bar end point

A party member disqualified under paragraph 2 contests and is declared elected before the old House term expires. The ministerial disability:

A. always continues for life. B. ends on the date the person is declared elected, under the earlier-event formula. C. ends only if the former party consents. D. never applies to State ministers.

Answer: B. ends on the date the person is declared elected, under the earlier-event formula.

Option-specific explanations:

- **A:** Incorrect: the bar is temporary and textually bounded.
- **B:** Correct: declared re-election is the earlier terminating event.
- **C:** Incorrect: party consent is not the constitutional endpoint.
- **D:** Incorrect: Article 164(1B) supplies the State rule.

Examiner trap 26: The endpoint is old-term expiry or earlier declared re-election, whichever comes first.

MCQ 27. Article 361B

Article 361B principally concerns:

A. the size of the Union Council of Ministers. B. the Speaker's removal procedure. C. a temporary bar on remunerative political posts for the specified disqualified member. D. the Election Commission's power over party symbols.

Answer: C. a temporary bar on remunerative political posts for the specified disqualified member.

Option-specific explanations:

- **A:** Incorrect: Article 75(1A) supplies the Union ministry cap.
- **B:** Incorrect: Speaker removal is governed elsewhere.
- **C:** Correct: Article 361B targets publicly remunerated political reward.
- **D:** Incorrect: symbol power comes from the Symbols Order framework.

Examiner trap 27: Ministerial bars and remunerative-political-post bars are related but separately located.

MCQ 28. Whip reform

Which proposition is a reform proposal rather than present Tenth Schedule law?

A. A party member may be disqualified for voluntarily giving up membership. B. An independent is disqualified on joining a political party. C. The Speaker or Chairman ordinarily decides paragraph 6 questions. D. Whip-backed disqualification should be confined to confidence, money/supply or comparable survival votes.

Answer: D. Whip-backed disqualification should be confined to confidence, money/supply or comparable survival votes.

Option-specific explanations:

- **A:** Incorrect: this is current paragraph 2(1)(a).
- **B:** Incorrect: this is current paragraph 2(2).
- **C:** Incorrect: this is current paragraph 6.
- **D:** Correct: narrow-whip models are recommended reforms, not enacted limits.

Examiner trap 28: Status-label reform recommendations; do not constitutionalise them by repetition.

MCQ 29. Coalition versus merger

Two parties form a post-election governing coalition but retain separate organisations. This is:

A. not automatically a paragraph 4 merger. B. always a merger if they share a common minimum programme. C. a merger only when the Governor calls a floor test. D. proof that every member voluntarily gave up membership.

Answer: A. not automatically a paragraph 4 merger.

Option-specific explanations:

- **A:** Correct: cooperation does not itself merge original political parties.
- **B:** Incorrect: a programme is political evidence, not the paragraph 4 test.
- **C:** Incorrect: floor-test power does not define organisational merger.
- **D:** Incorrect: collective government support is not automatic para 2(1)(a) proof.

Examiner trap 29: Merger changes party identity; coalition coordinates distinct parties.

MCQ 30. Sita Soren boundary

Why is Sita Soren (2024) only a boundary case here?

A. It restored the one-third split defence. B. It concerns bribery and legislative privilege, not the elements of paragraph 2 defection. C. It transferred defection petitions to criminal courts. D. It held every whip unconstitutional.

Answer: B. It concerns bribery and legislative privilege, not the elements of paragraph 2 defection.

Option-specific explanations:

- **A:** Incorrect: the case did not amend the Tenth Schedule.
- **B:** Correct: its privilege holding prevents bribery immunity but is not a defection test.
- **C:** Incorrect: it did not change paragraph 6 allocation.
- **D:** Incorrect: it did not invalidate party directions.

Examiner trap 30: Do not merge criminal bribery, privilege and defection into one doctrine.

MCQ 31. Court role

A High Court receives a petition asking it to decide disputed defection facts before the Speaker acts. The ordinary constitutional approach is:

A. the court always conducts the first trial. B. the President must decide on Cabinet advice. C. the court ordinarily allows paragraph 6 first-instance adjudication, while retaining review and remedies against disabling inaction. D. the petition automatically becomes a symbol dispute.

Answer: C. the court ordinarily allows paragraph 6 first-instance adjudication, while retaining review and remedies against disabling inaction.

Option-specific explanations:

- **A:** Incorrect: courts are not the routine first-instance forum.
- **B:** Incorrect: this is not the paragraph 6 process.
- **C:** Correct: allocation, review and anti-delay remedies coexist.
- **D:** Incorrect: factual overlap does not change jurisdictional character.

Examiner trap 31: Judicial review is not synonymous with judicial first-instance adjudication.

MCQ 32. Reform synthesis

Which reform package most directly answers the law's principal institutional weaknesses?

A. Restore the one-third split and eliminate judicial review. B. Let the Governor choose the authorised political party. C. Make every dissenting speech a disqualification ground. D. Narrow high-stakes whips, neutral time-bound adjudication, clearer merger proof and stronger internal party democracy.

Answer: D. Narrow high-stakes whips, neutral time-bound adjudication, clearer merger proof and stronger internal party democracy.

Option-specific explanations:

- **A:** Incorrect: both elements reverse constitutional lessons.
- **B:** Incorrect: the Governor cannot decide intra-party leadership.
- **C:** Incorrect: this would exceed paragraph 2 and suppress deliberation.
- **D:** Correct: it addresses freedom, delay, merger engineering and party authorisation.

Examiner trap 32: A credible reform must address both substantive reach and decision architecture.

PYQS AND ANSWER PRACTICE

Verified relevant UPSC PYQs

PYQ 1 - UPSC CSE Prelims 2022, GS Paper I, Question 16

Exact question: With reference to anti-defection law in India, consider the following statements:

1. The law specifies that a nominated legislator cannot join any political party within six months of being appointed to the House.
2. The law does not provide any time-frame within which the presiding officer has to decide a defection case.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Official key: B - 2 only.

Solution: Statement 1 is incorrect. A nominated member who was unaffiliated may join within six months from taking the seat; joining after six months attracts paragraph 2(3). Statement 2 is correct because the Schedule has no express decision deadline. Keisham's ordinary three-month norm is judicial doctrine, not bare text.

PYQ 2 - UPSC CSE Prelims 2025, GS Paper I, Question 88

Exact question: Consider the following statements:

- I. If any question arises as to whether a Member of the House of the People has become subject to disqualification under the Tenth Schedule, the President's decision in accordance with the opinion of the Council of Union Ministers shall be final.
- II. There is no mention of the word 'political party' in the Constitution of India.

Which of the statements given above is/are correct?

A. I only B. II only C. Both I and II D. Neither I nor II

Official key: D - Neither I nor II.

Solution: Statement I is incorrect because paragraph 6 assigns the initial question to the Speaker, not the President acting on ministerial advice. Statement II is incorrect because the Tenth Schedule repeatedly uses 'political party'. Article 103 procedure for Article 102(1) disqualifications is a different route.

PYQ 3 - UPSC CSE Mains 2023, GS-II, Question 5 (supporting presiding-officer route)

Exact question: "Discuss the role of Presiding Officers of state legislatures in maintaining order and impartiality in conducting legislative work and in facilitating best democratic practices." **10 marks | 150 words**

Official-key discipline: UPSC does not publish an official descriptive model answer. The following is an original examiner-oriented solution, not an official key.

Model solution: State presiding officers are procedural guardians: they recognise speakers and motions, enforce rules, maintain order and protect both majority decision and opposition scrutiny. Their constitutional functions include voting arrangements under Article 189, Money Bill certification under Article 199 and defection adjudication under paragraph 6 of the Tenth Schedule.

These powers make impartiality operational rather than ceremonial. Kihoto treats the Speaker deciding defection as a reviewable tribunal; Keisham requires ordinarily prompt disposal. Reasoned rulings, equal opportunity, disclosed procedure and timely decisions prevent discretion from becoming a partisan device.

Yet continuing party affiliation creates an appearance-of-bias risk. Best democratic practice therefore requires transparent rulings, convention-based detachment and neutral, time-bound defection adjudication subject to judicial review. The office should facilitate deliberation and lawful majority formation, not manufacture either.

Original Mains practice with model solutions

Mains 1 - 10 marks | 150 words

Question: Explain the paragraph 2 grounds and the distinct treatment of party, independent and nominated members.

Directive route: Define the issue, use exact constitutional text and a named holding, analyse institutional consequences, add a counter-position and close with a qualified verdict.

Paragraph 2 protects the political identity through which a legislator enters the House, but it uses category-specific rules. A party member is disqualified by voluntarily giving up membership or by voting or abstaining contrary to an authorised party direction without prior permission and without condonation within fifteen days. Ravi S. Naik confirms that voluntary giving up may be inferred from proved conduct, not only formal resignation.

An independent member is disqualified on joining any political party after election because the electorate chose a non-party candidate. A nominated member may join a party within six months from taking the seat; joining after that period attracts disqualification. If already affiliated at nomination, deemed belonging follows that party.

Thus, the Schedule does not punish every dissent. It applies precise grounds, permissions and time rules, subject to paragraph 4 merger, paragraph 5 exemption, fair adjudication and judicial review.

Mains 2 - 10 marks | 150 words

Question: Distinguish political party, legislature party and original political party under the Tenth Schedule.

Directive route: Define the issue, use exact constitutional text and a named holding, analyse institutional consequences, add a counter-position and close with a qualified verdict.

The political party is the organisational and electoral entity that sets up candidates and authorises legislative directions. The legislature party is the House-specific group of all members who belong to that political party. The original political party is the party to which a member belongs for paragraph 2(1).

The distinction has two consequences. First, paragraph 2 discipline flows from the political party. Subhash Desai held that a breakaway legislature-party majority cannot appoint a rival whip merely through headcount; the Speaker must identify authorisation from the party constitution and organisation. Second, legislature-party numbers matter within paragraph 4: not less than two-thirds must agree to the merger for the deeming protection.

Therefore, two-thirds is not a free-standing power to create a new party. Organisational merger, legislative threshold and evidentiary inquiry must be separately established.

Mains 3 - 15 marks | 250 words

Question: Discuss Kihoto Hollohan's constitutional settlement on the Tenth Schedule and judicial review.

Directive route: Define the issue, use exact constitutional text and a named holding, analyse institutional consequences, add a counter-position and close with a qualified verdict.

Kihoto Hollohan preserved anti-defection while preventing the Tenth Schedule from becoming an enclave beyond the Constitution. The majority substantially upheld the 52nd Amendment and paragraph 6, rejecting the claim that entrusting the Speaker or Chairman necessarily destroyed the basic structure.

However, paragraph 7 attempted to exclude every court from matters connected with Schedule disqualification. Because that ouster affected the jurisdiction of the Supreme Court and High Courts under Articles 136, 226 and 227, the proviso to Article 368 required ratification by at least half the States. The amendment lacked that ratification; paragraph 7 was therefore invalid without invalidating the remainder.

Kihoto also characterised the presiding officer as a tribunal when deciding defection. The order is reviewable for constitutional mandate violation, mala fides, breach of natural justice and perversity. Review is supervisory, not a routine appeal on every factual disagreement. Ordinarily it follows the final decision, though grave and irreversible interlocutory consequences may justify exceptional intervention.

The settlement is therefore dual: first-instance institutional allocation remains with the House's presiding officer, but finality cannot extinguish basic-structure judicial review. Later delay cases show the qualification: review corrects illegality, yet a partisan or inactive adjudicator can still distort legislative majorities before review arrives.

Mains 4 - 15 marks | 250 words

Question: Analyse resignation, defection disqualification and the 91st-Amendment office disabilities.

Directive route: Define the issue, use exact constitutional text and a named holding, analyse institutional consequences, add a counter-position and close with a qualified verdict.

Resignation and defection are separate constitutional inquiries. A member may tender resignation under Article 101 or 190, while paragraph 6 may simultaneously require decision on earlier conduct under the Tenth Schedule. The sequence matters because a later resignation cannot retrospectively erase a completed paragraph 2 ground.

Shrimanth Balasaheb Patil held that the Speaker retained jurisdiction over antecedent defection despite resignations. This blocks the resign-and-escape route. Yet the Speaker exceeded constitutional authority by barring the members from contesting elections for the remainder of the Assembly term. Tenth Schedule disqualification vacates the seat; it does not itself create a term-long electoral prohibition.

The 91st Amendment separately blocks immediate rewards. Articles 75(1B) and 164(1B) bar the specified paragraph-2-disqualified party member from ministership. Article 361B bars a remunerative political post. Each disability runs from disqualification until the old term would expire or, if the person contests earlier, the date declared elected, whichever occurs first.

Thus, the framework combines anti-evasion with bounded consequences. Resignation cannot defeat jurisdiction, but neither the Speaker nor political criticism may invent a punishment beyond the constitutional text. Re-election may end the temporary office disability, exposing why resignation strategies remain a practical reform concern.

Mains 5 - 20 marks | 250 words

Question: Critically examine whether the anti-defection law protects stability at the cost of representative democracy.

Directive route: Define the issue, use exact constitutional text and a named holding, analyse institutional consequences, add a counter-position and close with a qualified verdict.

The Tenth Schedule answers a genuine democratic injury: legislators elected on a party mandate should not trade allegiance and office to overturn government. Paragraph 2, the deletion of the one-third split and the 91st-Amendment reward bars have reduced open individual floor-crossing and strengthened cabinet stability.

The same design creates costs. Paragraph 2(1)(b) does not confine disqualifying directions to confidence or Money Bills. Broad whips can suppress policy dissent, committee-minded scrutiny and constituency representation. Leadership thereby gains control without a parallel constitutional guarantee of internal party democracy. Paragraph 4 also channels strategy towards two-thirds group engineering, while resignation tactics may alter the effective majority before adjudication.

Institutional design compounds the problem. The Speaker is both a political actor and paragraph 6 tribunal. Kihoto preserves review, Rajendra Singh Rana controls disabling inaction, and Keisham states an ordinary three-month norm, yet delay can still decide political outcomes before legality is settled. Subhash Desai restores organisational party authority over the whip but cannot itself democratise that authority.

The answer is calibrated reform, not repeal: confine disqualification-backed whips to government-survival and supply votes; create a neutral, time-bound adjudicator subject to review; require transparent party authorisation; and clarify that paragraph 4 demands genuine merger proof, not headcount alone. Stability is constitutionally valuable, but it should be secured by precise discipline rather than legislative servitude.

Mains 6 - 20 marks | 250 words

Question: Using Subhash Desai (2023), analyse the distribution of authority during an intra-party legislative conflict.

Directive route: Define the issue, use exact constitutional text and a named holding, analyse institutional consequences, add a counter-position and close with a qualified verdict.

Subhash Desai rejects the idea that one institution or legislative faction controls every consequence of an intra-party conflict. Authority is distributed by function.

The political party, acting through its constitutionally relevant organisational structure, appoints the whip and leader. A legislature-party faction cannot manufacture that authority merely by assembling more legislators. The Speaker then identifies the authorised political party from its constitution, records and leadership material and decides Tenth Schedule petitions under paragraph 6. Courts supervise legality but do not ordinarily replace this first-instance fact-finding.

The Election Commission follows a separate track under the Symbols Order. It may decide a symbol dispute while disqualification petitions remain pending because symbol entitlement and paragraph 2 liability ask different questions. The Governor performs constitutional functions but cannot determine intra-party leadership. In the Maharashtra facts, the Court found no objective material for the impugned floor-test call based merely on internal dissent.

The judgment neither disqualified members itself nor restored the former government, whose Chief Minister had resigned. It also referred the correctness of Nabam Rebia's removal-notice restriction for larger-bench reconsideration; no later official merits ruling was located through 8 September 2026.

The case therefore supplies an institutional firewall: party authorises, Speaker adjudicates, ECI decides symbols, Governor stays within constitutional limits and courts review. Accurate answers must preserve these parallel jurisdictions rather than letting legislative headcount decide them all.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

1. The merger defence as a legal-fiction problem

Paragraph 4 combines organisational language with a numerical deeming rule. A high-quality answer should resist both extremes: it should not make proof of every organisational act irrelevant, and it should not read the two-thirds threshold out of the text. The safer formulation is that protection arises only within paragraph 4's merger architecture, with the Speaker examining the original party, authorised records, timing and the agreement of not less than two-thirds of the legislature party.

2. Adjudicator redesign

Three models recur: retain the Speaker with a binding deadline; transfer the question to the President/Governor acting on Election Commission advice; or create a permanent tribunal chaired by a retired judge. Neutrality favours external adjudication, while speed, expertise, federal design and judicial-review access must also be specified. Keisham's tribunal observation is persuasive reform reasoning, not current law.

3. Narrow-whip design

A narrow-whip amendment could cover confidence/no-confidence, money or supply and expressly designated government-survival votes. Ordinary Bills and committee work could then permit recorded dissent. The qualification is anti-evasion: parties may label routine votes as confidence questions, so any reform needs objective categories, recorded authorisation and reviewable reasons.

4. Internal party democracy

Subhash Desai restores authority to the political party over a legislature faction, but organisational authority is democratically stronger when the party constitution, decision-making organ and authorisation are transparent. Candidate selection, internal elections, consultation and recorded whip reasons affect the legitimacy of party discipline even where they do not independently decide paragraph 2 liability.

5. Comparative constitutional insight

India attaches seat loss to specified party-linked conduct. Comparative systems range from strong party control to political rather than legal sanctions. The exam value is analytical: constitutionalising discipline increases stability but also transfers power to party leadership and adjudicators. Comparative references should illuminate that trade-off, not replace the Indian text.

CONSOLIDATED REGISTER NOTES

Constitutional location and chronology

- 1967 instability supplies background; the legal source is the 52nd Amendment.
- 52nd Amendment Act, 1985: Articles 101, 102, 190, 191 amended; Tenth Schedule inserted; effective 1 March 1985.
- Articles 102(2)/191(2): defection disqualification bridge. Articles 101/190: vacancy consequence.
- 91st Amendment Act, 2003, effective 1 January 2004: paragraph 3 omitted; ministry caps and office bars added.

Paragraph-by-paragraph recall

Paragraph	Exam-safe content
1	House; legislature party; original political party; paragraph
2	party-member grounds; independent joining rule; nominated six-month rule; historical transition
3	omitted one-third split defence
4	original-party merger + not less than two-thirds legislature-party agreement + protected choices
5	exact presiding-office neutrality exemption
6	Speaker/Chairman; House-elected substitute; legislative-proceeding deeming
7	printed court ouster, invalid under Kihoto
8	records, reports, petition procedure, 30-day laying and rule control

Ground and category firewall

- Voluntarily giving up is wider than formal resignation; infer only from proved conduct.
- Whip ground: authorised direction + contrary vote/abstention + no prior permission + no condonation within fifteen days.
- Independent: joining any party after election disqualifies; no six-month grace.
- Nominated: may join within six months from taking the seat; joining later disqualifies.
- Every dissent is not defection; current law is not textually limited to confidence or Money Bills.

Merger and split

- One-third split is dead.
- Two-thirds is measured in the legislature party but functions only inside paragraph 4's merger design.
- Original political party and legislature party are distinct.
- Coalition is not merger; ECI symbol recognition alone is not paragraph 4 adjudication.

Adjudication, procedure and review

- Speaker/Chairman decides first instance; if personally concerned, House elects a member.
- Petition, disclosed material, reply, evidence, hearing and reasoned order support natural justice.
- Kihoto: core law upheld; Speaker is tribunal; paragraph 7 invalid; review survives.
- Courts review legality and disabling inaction; they do not ordinarily become first-instance fact-finders.
- Keisham: ordinarily three months from filing, absent reasoned exceptional circumstances; tribunal suggested, not enacted.

Case spine

1. Kihoto Hollohan (1992): validity, tribunal, review, paragraph 7 ratification failure.
2. Ravi S. Naik (1994): conduct may prove voluntarily giving up.
3. G. Viswanathan (1996): expulsion does not erase deemed belonging.
4. Rajendra Singh Rana (2007): unsupported split recognition and inaction invalid.
5. Nabam Rebia (2016): removal-notice disability; larger-bench correctness issue unresolved through 8 September 2026.
6. Shrimanth Balasaheb Patil (2019): resignation no erasure; no Speaker-created term-long contest ban.
7. Keisham Meghachandra Singh (2020): ordinary three-month norm; tribunal suggestion.
8. Subhash Desai (2023): political party appoints whip/leader; Speaker, ECI, Governor and courts have separate functions.
9. Sita Soren (2024): bribery not privileged; boundary distinction, not a defection holding.

91st-Amendment rapid recall

- Article 75(1A): Union ministry $\leq$ 15% of Lok Sabha.
- Article 164(1A): State ministry $\leq$ 15% of Assembly; minimum 12.
- Articles 75(1B), 164(1B): specified defector barred from ministership.
- Article 361B: specified defector barred from remunerative political post.
- End point: old-term expiry or earlier date declared elected, whichever is earlier.

Democratic evaluation and reform route

- Gain: government stability, mandate protection, lower open retail floor-crossing.
- Cost: broad whips, leadership centralisation, group engineering, resignation strategy, Speaker delay.
- Reform: narrow high-stakes whip; neutral and time-bound adjudication; clear merger proof; transparent party authorisation; stronger internal democracy.
- Status caution: these reforms are proposals unless constitutionally enacted.

Final answer spine

purpose -> Articles and paragraph -> member type/ground -> defence -> decider and fair process
-> controlling case -> consequence -> democratic trade-off -> reform status -> qualified
verdict

Qualified conclusion: The Tenth Schedule's stability principle should be retained, but legitimate party discipline must be precise, internally authorised, promptly and neutrally adjudicated, and continuously reviewable under the Constitution.